

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JOSE SANTOS,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT DETECTIVE MATTHEW
FORTE, Shield #19, NEW YORK CITY POLICE
SERGEANT MICHAEL KORABEL, Shield #1763, and
UNDERCOVER OFFICER Shield #30, NBMN

Defendants.

Index No.:

Purchased Date:

SUMMONS

Plaintiff designates
NEW YORK County as
the place of trial.

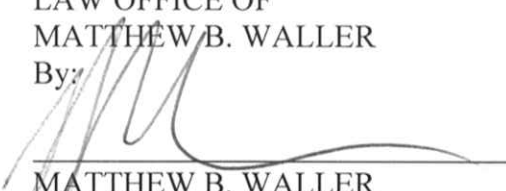
The basis of venue is:
Plaintiff's residence
1738 Lexington Avenue
New York, N.Y.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York, and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.
March 7, 2016

LAW OFFICE OF
MATTHEW B. WALLER

By: 

MATTHEW B. WALLER
Attorneys for Plaintiff

JOSE SANTOS
20 Vesey Street - Suite 500
New York, New York 10007
(212) 766-4411

Defendants' Address:
THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

100 Church Street

New York, NY 10007

DETECTIVE MATTHEW FORTE, Shield #19, NBMN

One Police Plaza

New York, N.Y. 10007

NEW YORK CITY POLICE SERGEANT

MICHAEL KORABEL, Shield #1763, NBMN

One Police Plaza

New York, N.Y. 10007

UNDERCOVER OFFICER, Shield #30, NBMN

One Police Plaza

New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE SANTOS,

Index No.:

Plaintiff,
-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT DETECTIVE MATTHEW
FORTE, Shield #19, (NBMN), NEW YORK CITY POLICE
SERGEANT MICHAEL KORABEL, Shield #1763, (NBMN),
And UNDERCOVER OFFICER, Shield #30, (NBMN),

Defendants.

-----X
Plaintiff by his attorney, **LAW OFFICE OF MATTHEW B. WALLER, ESQ.**, complaining
of the defendants, respectfully alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the common law and the laws of the State of New York. On August 15, 2014, plaintiff was unlawfully detained, searched, arrested, and was falsely imprisoned and maliciously prosecuted by the defendants, City of New York, New York City Police Department and Police Officer "John Does".

PARTIES

2. Plaintiff is and was a resident of the County, City and State of New York.
3. Defendant, **THE CITY OF NEW YORK**, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.
4. The defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
5. At all times relevant hereto defendant, **THE NEW YORK CITY POLICE**

DEPARTMENT (hereinafter NYPD) is a city agency organized under the Municipal Corporation Law of the City of New York to provide safety to the citizens of New York.

6. New York City Police Detective Matthew Forte (“Forte”), shield number 19, is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department.
7. On the date of incident, August 15, 2014, Detective Forte was assigned to Narcotics Borough Manhattan South (NBMN).
8. Detective Forte is being sued in his individual and official capacity.
9. New York City Police Sergeant Michael Korabel (“Korabel”), shield number 1763, is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department.
10. On the date of incident, August 15, 2014, Sergeant Korabel was assigned to Narcotics Borough Manhattan South (NBMN).
11. Sergeant Michael Korabel is being sued in his individual and official capacity.
12. New York City Undercover officer First and last name unknown, shield number 30, is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department.
13. On the date of incident, August 15, 2014, undercover officer Shield 30 was assigned to Narcotics Borough Manhattan South (NBMN).
14. Undercover officer Shield 30 is being sued in his individual and official capacity.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and/or officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as agents, servants, employees, and/or officers of the New York City Police Department and incidental to the lawful pursuit of their duties as agents, servants, employees, and/or officers of the New York City Police Department.
16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant, City of New York, assumes the risks

incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

NOTICE OF CLAIM

17. Plaintiff in furtherance of his stated cause(s) of action filed a timely Notice of Claim against the City of New York, within 90 days of the statutory date of accrual, in compliance with the Municipal Law Section 50-e.
18. That more than thirty (30) days have elapsed since the service of the Notice of Claim, and adjustment or payment has been neglected or refused by the City of New York.
19. This action is being commenced within the applicable statute of limitation, within one year and ninety days of the date of occurrence (the time provided by law).
20. That pursuant to GML 50-h (5) a "50-h" hearing was held on January 20, 2016.

STATEMENT OF FACTS

21. On August 15, 2014, plaintiff JOSE SANTOS was doing his laundry across the street from his residence at 1738 Lexington Avenue, New York, New York.
22. Shortly thereafter, his friend, Nelson Ruiz, met him at the rear of his building.
23. After just a few minutes, several New York City Police Officers approached them.
24. Approximately, ten to fifteen feet away from their location, one of the Police officers recovered something from underneath a car that was not near them.
25. Both, plaintiff and his friend Nelson Ruiz responded that it wasn't theirs.
25. And after a search of the plaintiff and his friend, nothing was recovered on them.
26. Despite a negative search, plaintiff and his friend were arrested.
27. Thereafter, Mr. Santos was processed.
28. Mr. Ruiz was released.
29. Mr. Santos was arraigned under docket number 2014NY063439. Bail was set on his case, and spent several months on Rikers Island, NY.

30. On October 6, 2015, the matter was dismissed and sealed. During the entire process, Mr. Santos maintained his innocence.
31. There was no probable cause or reasonable suspicion for their arrest and subsequent detention and imprisonment.
32. It appears that defendant Officer(s) failed to properly investigate the subject incident.
33. The false arrest, false imprisonment and malicious prosecution of the plaintiff, by these police officer defendants caused the plaintiff to sustain physical, psychological and emotional trauma.

**AND AS FOR PLAINTIFF'S FIRST CAUSE OF ACTION
FOR: FALSE ARREST AND FALSE IMPRISONMENT**

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "33" with the same force and effect as if more fully set forth at length herein.
35. The acts and conduct of the defendant Officer(s) constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment of the United States Constitution.
36. On August 14, 2014 the plaintiff was without probable cause or reasonable suspicion falsely arrested by defendant Officer(s), members of the New York City Police Department.
37. On August 14, 2014 defendant Officer(s) intended to confine the plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to their confinement and their confinement was not otherwise privileged.
38. The defendant Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
39. The City of New York and the New York City Police Department, as the employer of the defendant Officers, are responsible for their wrongdoing under the doctrine of respondeat superior.
40. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR PLAINTIFF'S SECOND
CAUSE OF ACTION FOR: MALICIOUS PROSECUTION**

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully set forth at length herein.
42. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution.
43. Defendants commenced and continued a criminal proceeding against plaintiff.
44. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff, and for the charge(s) for which he was prosecuted.
45. The prosecution and criminal proceedings terminated favorably to the plaintiff.
46. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
47. Defendant Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
48. The City of New York and the New York City Police Department, as the employer of the defendant Officers, are responsible for their wrongdoing under the doctrine of respondeat superior.
49. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR PLAINTIFF'S THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING, RETENTION,
TRAINING AND SUPERVISION**

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "49" with the same force and effect as if more fully set forth at length herein.
51. At all relevant times hereto, defendants **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT** had the duty to competently

and sufficiently hire, train and retain within the Police Academy and at the Command, precinct and Patrol levels, the defendant Officer(s) in the protection of the rights of the plaintiff under the laws of the State of New York.

52. The City of New York and the New York City Police Department and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendant Officer(s) who were unfit for the performance of police duties on the aforementioned date, at the aforementioned location.
53. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR PLAINTIFF'S FOURTH CAUSE OF ACTION
FOR: NEGLIGENT INFLICTION OF EMOTION DISTRESS**

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "53" with the same force and effect as if more fully set forth at length herein.
55. By the actions described herein defendant Officer(s) engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to the plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed to plaintiff by the laws and Constitution of the State of New York.
56. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
57. The City of New York and New York City Police Department, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
58. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
59. That this action falls within one or more of the exceptions set forth in C.P.L.R. §1602.
60. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with the costs, interests and disbursement of this action, and such other relief as is appropriate under the law.

Dated: New York, N.Y.
March 7, 2016

LAW OFFICE OF MATTHEW B. WALLER

By:



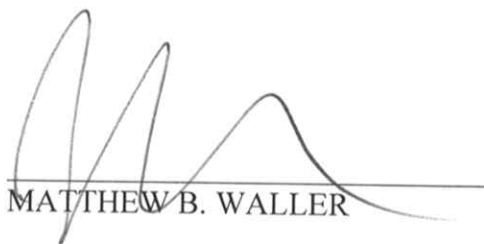
MATTHEW B. WALLER
Attorney for Plaintiff
JOSE SANTOS
20 Vesey Street - Suite 500
New York, New York 10007
212-766-4411

ATTORNEY'S VERIFICATION

MATTHEW B. WALLER, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not the Plaintiff is that the Plaintiff does not reside in the county wherein I maintain my office.

Dated: New York, N.Y.
March 7, 2016


MATTHEW B. WALLER

Index No.: _____

Year: _____

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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Plaintiff,

-against-

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POLICE DEPARTMENT DETECTIVE MATTHEW
FORTE, Shield #19, (NBMN), NEW YORK CITY POLICE
SERGEANT MICHAEL KORABEL, Shield #1763, (NBMN),
And UNDERCOVER OFFICER, Shield #30, (NBMN),

Defendants.

VERIFIED COMPLAINT

LAW OFFICE OF MATTHEW WALLER

Attorneys for Plaintiff

JOSE SANTOS

20 Vesey Street - Suite 500

New York, N.Y. 10007

212-766-4411

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____

Signed: _____

Service of a copy of the within

is hereby admitted.

Dated: _____

Attorney(s) for